

Court No. - 21

Case :- WRIT - C No. - 23541 of 2024

Petitioner :- Keshari Nandan Rai

Respondent :- Up Power Corporation Limited Shakti Bhawan
Lucknow And Another

Counsel for Petitioner :- Sandeep Kumar Tiwari

Counsel for Respondent :- Chetan Chatterjee, Krishna Agarawal

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The petitioner has challenged the order of final assessment passed by respondent no. 2 under Section 126 of the Electricity Act, 2003 read with the powers contained under the Electricity Supply Code, 2005.
2. Shri Chetan Chatterjee, learned counsel appearing for Electricity Department submits that the petitioner has alternative remedy of filing appeal under Section 127 of the Act which is not disputed by learned counsel for the petitioner.
3. Consequently, we decline to examine the challenge and relegate the petitioner to the alternative remedy available under the Act.
4. The petition stands disposed of.

Order Date :- 24.7.2024

Ved Prakash

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)